

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

-----X **Index No.** _____
GERALD FOREMAN, Purchased 8-14-17
Plaintiff Plaintiff designates Bronx
County as the place of trial

- against -

The basis of the venue is
where the tort arose

**THE CITY OF NEW YORK,
POLICE OFFICER JEREMY RODRIGUEZ
(shield # 024012) and POLICE OFFICER
KENNETH MACCALLA (shield # 01554),**

SUMMONS

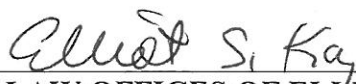
Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
August 14, 2017



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, New York 10022
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

**SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY****GERALD FOREMAN****Plaintiff,****Index No.****Verified Complaint****- against -****THE CITY OF NEW YORK,
POLICE OFFICER JEREMY RODRIGUEZ
(shield # 024012) and POLICE OFFICER
KENNETH MACCALLA (shield # 01554),****Defendants.**

Plaintiff GERALD FOREMAN, by his attorneys THE LAW OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the defendants, respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiff GERALD FOREMAN was a resident of Bronx County, City and State of New York.
2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of defendant CITY.

4. At all times hereinafter mentioned, defendant, POLICE OFFICER JEREMY RODRIGUEZ (shield # 024012) ("P.O. RODRIGUEZ") was and is a police officer employed by Defendants.
5. At all times hereinafter mentioned, defendant, POLICE OFFICER KENNETH MACCALLA (shield # 01554) ("P.O. MACCALLA") was and is a police officer employed by Defendants.

BACKGROUND

6. On November 5, 2014, at approximately 3:40 p.m., in the vicinity of Hull Avenue and East 204th Street in Bronx County, without just cause or provocation, P.O. RODRIGUEZ and P.O. MACCALLA, police officers with NEW YORK CITY POLICE DEPARTMENT, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crime of Criminal Sale of Marijuana in the Fourth Degree.
7. On or about November 5, 2014, a criminal complaint was issued at the directive of Defendants, and a criminal action against Plaintiff commenced.
8. The criminal matter was terminated in favor of Plaintiff on December 5, 2016.

PROCEDURAL POSTURE

9. On December 14, 2016, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice, and defendant CITY has failed to pay or adjust this claim.
11. A 50-H hearing has been held.
12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.
13. Plaintiff has duly complied with all conditions precedent to the commencement of this action.

FIRST CAUSE OF ACTION

14. Paragraphs 1-13 are incorporated by reference as though fully set forth herein.
15. In arresting Plaintiff, the Defendants acted with malice.
16. The Defendants lacked probable cause to arrest Plaintiff.
17. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.
18. All charges pending against Plaintiff were dismissed and sealed on December 5, 2016.

SECOND CAUSE OF ACTION

19. Paragraphs 1-18 are incorporated by reference as though fully set forth herein.
20. P.O. RODRIGUEZ and P.O. MACCALLA were at all times relevant, duly appointed and acting as a police officer with NEW YORK CITY POLICE DEPARTMENT.
21. At all times mentioned herein, P.O. RODRIGUEZ and P.O. MACCALLA were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

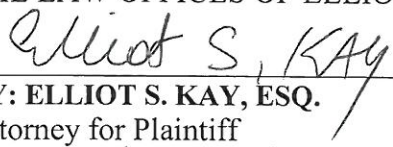
22. Plaintiff is and at all times relevant herein, a citizen of the United States and a resident of Bronx County in the State of New York and brings this cause of action pursuant to 42 United States Code, Section 1983 and 42 United States Code, Section 1988.
23. The Defendant CITY OF NEW YORK is a municipality duly incorporated under the laws of the State of New York.
24. On or about November 5, 2014, the Defendants, including P.O. RODRIGUEZ and P.O. MACCALLA, while effectuating the seizure of Plaintiff, did search, seize, assault and commit a battery and grab the person of Plaintiff without a court authorized arrest or search warrant. Defendants, including P.O. RODRIGUEZ and P.O. MACCALLA, did physically seize the person of Plaintiff during the arrest process in an unlawful and excessive manner. Plaintiff was falsely arrested. Defendants did not possess probable cause to arrest Plaintiff.
25. The above action of the Defendants resulted in Plaintiff being deprived of the following rights under the United States Constitution:
- a. Freedom from assault to Plaintiff's person;
 - b. Freedom from battery to Plaintiff's person;
 - c. Freedom from illegal search and seizure;
 - d. Freedom from false arrest;
 - e. Freedom from the use of excessive force during the arrest process.
26. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of Plaintiff's rights or with deliberate indifference to those rights under the fourth and fourteenth amendments of the United States Constitution.

27. The direct and proximate result of the Defendants' acts is that Plaintiff has suffered injuries of a psychological nature. Plaintiff was forced to endure pain, humiliation and suffering, all to Plaintiff's detriment.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: New York, NY
August 14, 2017

THE LAW OFFICES OF ELLIOT S. KAY


BY: ELLIOT S. KAY, ESQ.
Attorney for Plaintiff
115 East 57th Street, 11th Floor
New York, NY 10022
212-939-7251

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**-----X
GERALD FOREMAN,

Plaintiff,

-against-

Index No.Purchased: 8-14-17**VERIFICATION****CITY OF NEW YORK,
POLICE OFFICER JEREMY RODRIGUEZ
(shield # 024012) and POLICE OFFICER
KENNETH MACCALLA (shield # 01554),**Defendants

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I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiff is because Plaintiff resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
August 14, 2017



ELLIOT S. KAY